

6. LEGAL FACTS AND LEGAL ACTS, RIGHTS AND DUTIES

INTRODUCTION TO THE LEGAL SYSTEM

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Prof. Pietro Sirena



Un. 6

Sirena, *Introduction to Private Law*, 3rd edition

1. LEGAL RELEVANCE OF NATURAL EVENTS
2. LEGAL ACTS
3. LEGAL RELATION: NOTION AND CONTENT
4. CATEGORIES OF RIGHTS
5. STATUTES OF LIMITATIONS



Università
Bocconi
MILANO



Università Commerciale
Luigi Bocconi

LEGAL RELEVANCE OF NATURAL EVENTS

Sirena, *Introduction*,
ch. 9, para 1

What methods can
be used to
recognize events or
activities that have
legal
consequences?

How can we
determine if such
events or actions
no longer hold
any legal
significance?

Not any event that may
take place or any action
that may be undertaken
triggers legal effects

- (i) It's impossible to establish a criterion for distinguishing what is inherently legal from what is not;
- (ii) When a specific situation is prescribed by a regulation, we encounter an occurrence or an act that has legal consequences

AUTONOMOUS LEGAL ACTS

Sirena, *Introduction*,
ch. 9, paras 1, 5

Legal acts are concluded through a declaration of will (be it through language, or by conduct), which is intended to perform a change in rights and duties of who is acting (the party)

Legal acts



Private autonomy

Any legal subject is given the power to produce a legal effect on her/his own patrimony or personality, to the extent to which the law does not pose any mandatory prohibition on doing so



"These acts must be done by their author with sufficient judgment and discernment of her own action"

MATERIAL FACTS

Sirena, Introduction,
ch 9, paras 1, 5



Example: “when a person dies, title to her property vests in the heirs, subject to administration. That is, the right to possession of an intestate’s property and the right to take through intestate succession accrue on the death of the ancestor, whatever event or action may have caused it – be it a murder, a heart attack, etc. In this respect, death is regarded by the law as a material fact”



some legal facts are addressed by a norm irrespective of the particular judgment or discernment of their authors, or they simply consist in natural events

DRAFT COMMON FRAME OF REFERENCE



Sirena, Introduction,
ch 9, para 5

II. – 1:102: Party autonomy

- (1) Parties are free to make a contract or other juridical act and to determine its contents, subject to any applicable mandatory rules.
- (2) Parties may exclude the application of any of the following rules relating to contracts or other juridical acts, or the rights and obligations arising from them, or derogate from or vary their effects, except as otherwise provided.
- (3) A provision to the effect that parties may not exclude the application of a rule or derogate from or vary its effects does not prevent a party from waiving a right which has already arisen and of which that party is aware

LEGAL ACTS

Legal acts play a major role in private law. Undeniably, they constitute the most important category of legal facts and their domain tends to expand also in other areas of legal systems (criminal and administrative laws, as an instance)



Contracts



Wills



Marriage

LEGAL ACTS - STRUCTURE

THE
EUROPEAN
TAXONOMY

UNILATERAL	BILATERAL	MULTILATERAL
(e.g., WILLS)	(e.g., SALE CONTRACTS)	(e.g., COMPANIES)
These actions are carried out through the unilateral declaration of intent by a single party (eg the withdrawal from a contract)	It necessitates the expression of mutual agreement between two parties (as is the case with the majority of contracts)	

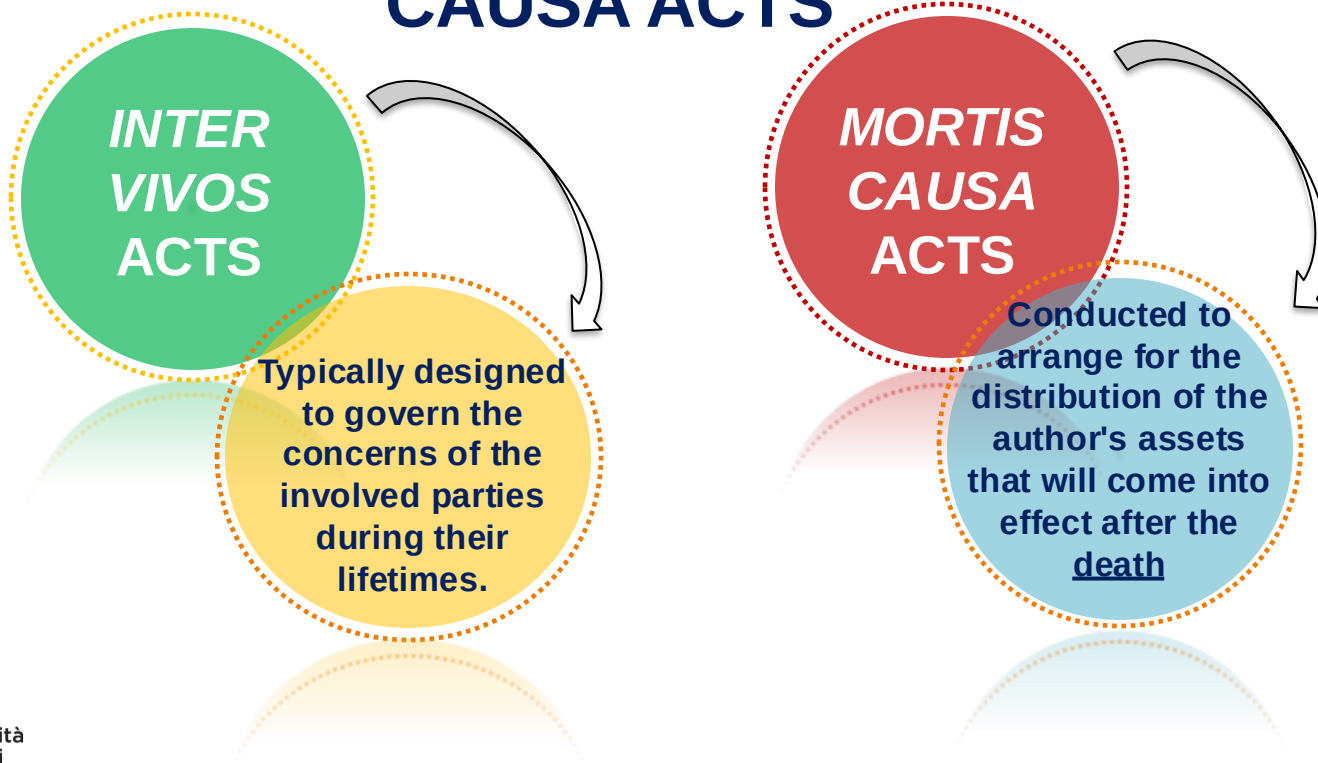


LEGAL ACTS - CONTENT

THE EUROPEAN TAXONOMY

PATRIMONIAL	NON-PATRIMONIAL
The intent of the party or parties is driven by an interest that can be evaluated in economic terms.	The intent of the party or parties is directed towards an interest that cannot be financially valued.
E.g. Contract (art. 1321 Italian Codice Civile)	E.g. Marriage
A contract is the exemplary form of a legal transaction where the content inherently involves economic aspects.	It also contains an economic aspect, but this aspect is quite restricted and doesn't fully define its nature.

INTER VIVOS ACT AND MORTIS CAUSA ACTS



PARTIES' AUTONOMY

Patrimony



broader

Personality



narrower

LEGAL RELATIONS

The link between any position of “can do” and a matching position of “shall, shall not do”

A credit is a juridical position of “**can do**”, which entitles its holder to claim a performance by someone else



This very “someone else” holds a correlative position of “**shall do**”, obliging her/him to render a performance in the interest of the creditor

obligation: one of the main legal relations, which ties together the holder of a credit (the **creditor**) and that of a debt (the **debtor**)

CATEGORIES OF RIGHTS

As regards its content, a right consists of a cluster of powers and privileges. The range of this cluster may vary greatly from one single right to another

According to their structure, rights may be gathered under two groups:

1. Relative rights: the claim of the holder may be raised solely towards one or many a single legal subject (*rights in personam*)



2. Absolute rights: the claim of the holder may be raised *erga omnes*, i.e. towards any other legal subject (*rights in rem*)



CREDITS - OBLIGATIONS

A credit (*créance, Forderung, credito*) entitles its holder (the creditor, *der Gläubiger, il creditore*) a claim for an economic performance which is to be rendered by another subject (the debtor, *der Schuldner, il debitore*)



The debtor holds a specific duty to render the performance owed to the creditor, called **debt** (*dette, Schuld, debito*)

ABSOLUTE RIGHTS (*IN REM*)

A right *in rem* entitles its holder to a claim towards anyone interfering with the possession over the good vested to her or him

Relevant patrimonial rights *in rem* are:

- ❑ **Property (intangibles)** (e.g. ownership, *Eigentum*, *proprietà*)
- ❑ **Intellectual property** (e.g. copyright)
- ❑ **Industrial property** (e.g. patent, trademark)

Relevant non-patrimonial rights *in rem*

- ❖ **Rights of personality** (*droits de la personnalité*, *Persönlichkeitsrechte*, *diritti della personalità*), which are encompassed in the broader genre of human rights (e.g. privacy, image, likeness, name)

CATEGORIES OF RIGHTS

According to their nature rights may be

Patrimonial



Non-patrimonial

Depending on whether or not the good owed by the rightholder can be exchanged for money

Disposable



Non disposable

Depending on whether or not the good owed by the rightholder can be transferred to someone else

DWARF-TOSSING

Dwarf-tossing is an activity in which dwarfism-affected persons wearing special padded clothing are thrown onto mattresses or at Velcro-coated walls. Participants compete to throw the dwarf the farthest



- Are dwarfism-affected persons disposing of their absolute (non-patrimonial) right to **dignity**?
- Should they be entitled to exercise their private autonomy in this way?

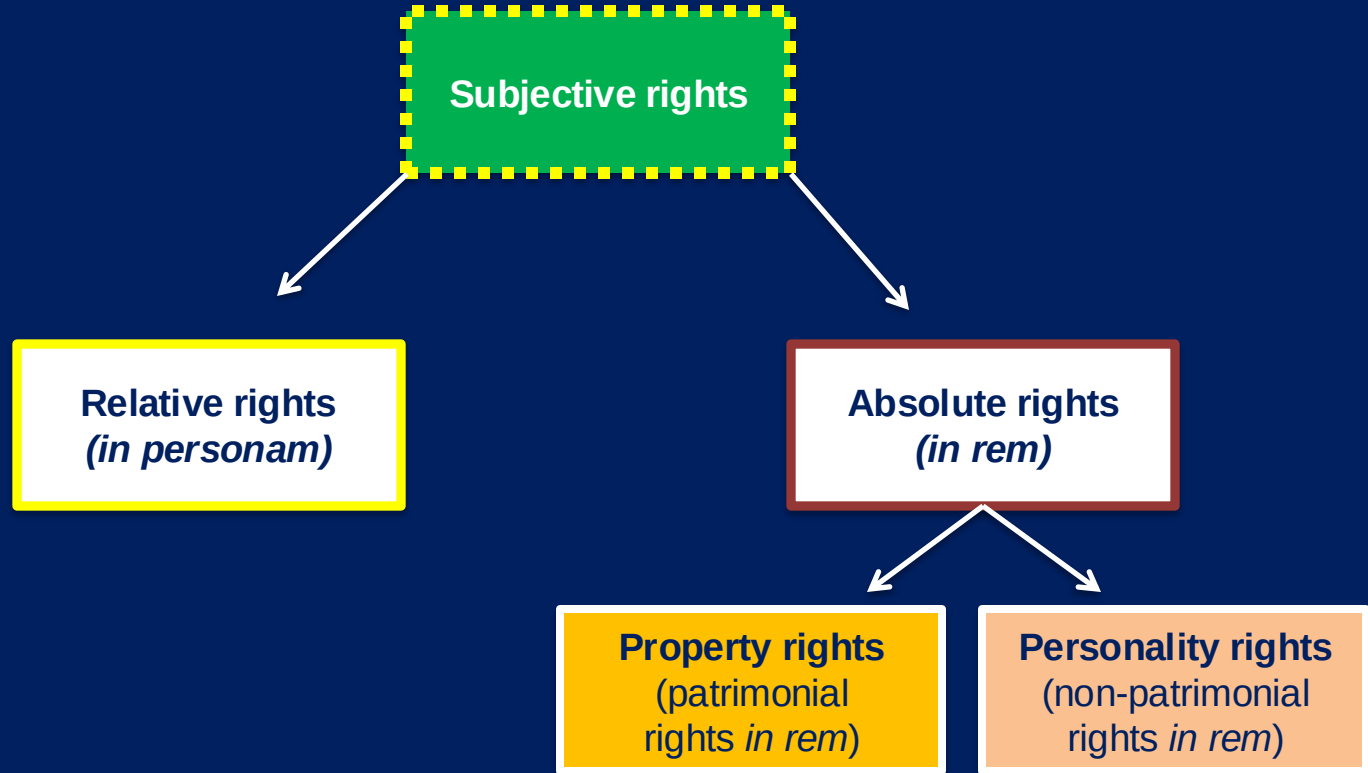
DWARF-TOSSING

The mayor of a small French town prohibited dwarf-tossing shows in public places

- Dwarfism-affected individuals, willing to take active part in such shows in exchange for a sum of money, challenged the legitimacy of the administrative ban in order to maintain their source of income
 - The French Supreme Administrative Court found that an administrative authority could legally prohibit dwarf-tossing on grounds that the activity did not respect **human dignity** and was thus contrary to public order. The ruling was taken by the full assembly and not a smaller panel – as proof of the difficulty of the question (*Conseil d'État*, October, 27, 1995)
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- Also the United Nations Human Rights Committee stated that the ban was not discriminatory with respect to dwarfs. It ruled that the ban could be considered as **"necessary to protect public order, which brings into play considerations of human dignity"** (July 26, 2002)



RECAP



STATUTES OF LIMITATIONS

Extinction of rights due to the lapse of a certain time determined by the law (**prescription**)



Rationale

- Facilitating resolution within a fixed length of time (which varies from legislation to legislation)
- Certainty in legal relationships
- Difficulties involved in the proof of facts
- Protecting the debtor's confidence

Prescription can
be waived, but
not for the
future



A statute of limitations does not apply to:

- Ownership
- Non-disposable rights

STATUTES OF LIMITATIONS

Tolling provisions

The statute of limitations is tolled when the running of time period is suspended by the law until some event takes place (e.g., if it is a minor who has to bring suit, the time limit is generally tolled till she/he reaches the age of majority)



Interruption

When the statute of limitations is interrupted, the time period begins to run afresh from the beginning (e.g., if the rightsholder claims for enforcement of her right)

Mere ignorance of the existence of a cause of action generally does not toll the statute of limitations